

BEFORE THE  
FEDERAL MARITIME COMMISSION

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DOCKET NO. 24-17

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SAMSUNG ELECTRONICS AMERICA, INC.,  
*Complainant,*

v.

ORIENT OVERSEAS CONTAINER LINE, LIMITED AND OOCL  
(EUROPE) LTD.

*Respondents & Third-Party Complainants*

v.

SAMSUNG ELECTRONICS COMPANY, LTD.,  
*Third-Party Respondent.*

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**JOINT STATUS REPORT 5 (JANUARY 2026)**

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Pursuant to 46 C.F.R. §502.141(h), the December 3, 2025 Second Amended Scheduling Order, (the “Order”) Samsung Electronics America, Inc., (“Complainant” or “SEA”), and Orient Overseas Container Line Limited, and OOCL (Europe) Limited (“Respondents” or “OOCL”)(and collectively, the “Parties”), by their respective undersigned counsel, have conferred and submit this joint status report. As directed by the July 1, 2025, Scheduling Order, the Parties each report on their respective discovery processes:<sup>1</sup>

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<sup>1</sup> Each Party has prepared its respective portion of this Joint Status Report. Accordingly, execution of this Report by a Party shall not be interpreted as agreement by that Party with statements made herein by the other Party.

**Claimant, Samsung Electronics America, Inc.**

**1. Discovery:**

**a. Current Status of Discovery**

SEA has fully completed its production of documents and other discovery obligations as of November 24, 2025. To date, SEA has produced 240,155 documents comprising 1,058,752 pages.

Despite OOCL's repeated claims that it had completed its production of documents and discovery responses months earlier, including a representation to that effect in the December 1, 2025 Status Report, OOCL continues to produce trickles of supplement productions, most recently on December 30, 2025. While review of OOCL's recent production and supplementation is ongoing, it appears to remain incomplete as of this filing.

Most notably, OOCL's production does not appear to have reflected production to date from the actual Respondents in this matter – Orient Overseas Container Line Limited, headquartered in Hong Kong, and OOCL (Europe) Limited, headquartered in England. Instead, OOCL appears to have limited its discovery searches to Respondents' U.S. agent, OOCL (USA) Inc. OOCL has also limited its production and responses to discovery through perfunctory objections and unilaterally limited responses.

To date, OOCL has produced 13,757 documents comprising 53,669 pages.

Despite efforts to resolve the current discovery disputes through conferences and correspondence, certain issues remain, and will likely require resolution through motions to compel discovery.

## **b. Overview of Discovery Actions**

SEA completed its production of documents and other discovery obligations on November 24, 2025.

Since that time, SEA has reviewed and analyzed the discovery produced by OOCL for completeness and identified several issues with OOCL's production. SEA raised those issue with OOCL both in writing and through a meet-and-confer held on December 15, 2025, and in response, OOCL produced additional documentation and supplemented its interrogatory responses. SEA has continued to review and analyze the data recently produced by OOCL to determine whether OOCL has completed its responses and production obligations.

With respect to discovery progress between the Parties since December 1st:

- **December 1, 2025:** SEA and OOCL submitted their 4<sup>th</sup> Joint Status Report in which SEA noted its completion of production, and OOCL attested that it had also completed its production.
- **December 2, 2025:** Notwithstanding OOCL's representation that its production had been completed in the JSR the day before, OOCL produced an additional 1,829 documents (4,572 pages).
- **December 5, 2025:** OOCL produced an additional 79 documents (555 pages);
- **December 11, 2025:** OOCL sent SEA a letter responding to the discovery deficiencies identified in the letter sent by SEA on November 14, 2025;
- **December 12, 2025:** SEA advised OOCL that while SEA appreciated OOCL's letter, there were still many items over which SEA and OOCL disagreed and which may need to be resolved by a Motion to Compel. SEA sought OOCL's position with respect to a Motion to Extend the Page Limits (e.g. the 10-page limit generally

applicable to non-dispositive motions). OOCL counsel requested a conference to discuss the outstanding discovery issues, to which SEA agreed.

- **December 15, 2025:** The parties met and conferred regarding OOCL's December 11 letter and SEA's position that categories of responsive documents remain outstanding. The parties identified a dispute with regard to the whether certain items were discoverable; SEA advised OOCL that barring resolution SEA would be compelled to consider a motion to compel. SEA noted that due to the requirement to set out fully each discovery request at issue, the other party's response, and the reason for the request to compel in such a motion, SEA would likely need to request a waiver of the usual page limits for a non-dispositive motion. OOCL stated that it would request parity in page limits for any response but reserved its position with respect to SEA's anticipated Motion to Extend Page Limits. The parties also discussed the possibility of engaging in mediation in an effort to resolve this matter.
- **December 19, 2025:** SEA sent OOCL a letter memorializing the meet and confer and confirming the parties' positions regarding production, mediation, and a potential motion to compel from SEA;
- **December 30, 2025:** OOCL produced an additional documentation totaling 4,574 pages.
- **December 31, 2025:** OOCL produced supplemental responses and requested further instructions on how to access the electronic tagging implemented by SEA in its productions.

As outlined in SEA's Motions for Enlargement of Time (September 23rd and September 30), the factual record necessary to pursue this matter in light of the number of charges involved

remains both extensive and complex. While several million documents were initially identified in SEA's review as possibly responsive, that number was reduced through refined searches and extensive review.

### **c. Outstanding Discovery Issues**

While review of OOCL's recent production and supplementation is ongoing, it appears to remain incomplete as of this filing. SEA's letter of December 19 outlined the deficiencies that remained outstanding following the Parties' December 15th Meet and Confer, and outlined why a motion to compel would be timely at this juncture.

Based on SEA's review to date, OOCL's production does not indicate that OOCL conducted comprehensive, targeted custodial and system searches of the Respondent entities themselves (including identification of custodians, repositories, and date ranges searched). SEA continues to seek clarity and completion on that scope.

OOCL has also continued to raise what appear to SEA to be perfunctory, reflexive objections in failing to respond fully to what SEA contends are clearly discoverable interrogatories.

### **d. Response to OOCL Complaints**

In its section below, OOCL notes several issues with the discovery process between the parties which SEA would like to address.

With respect to the volume of discovery, contrary to OOCL's complaints, providing documents responsive to OOCL's extensive requests is not a "data dump." SEA undertook efforts to provide OOCL with the full volume of responsive documents as quickly and comprehensively as possible, rather than forcing OOCL to repeatedly identify and point out missing documentation, as SEA has had to do with OOCL's piece-meal production. Further,

while OOCL has continued to complain about the amount of time making complete production took, such complaints are ironic at best, considering that OOCL is continuing to piece-out its own production, which appears to remain incomplete as of this Report.

With regard to the organization of SEA's production, SEA does not fully understand why OOCL is having its claimed issues, but nevertheless is coordinating in good faith with its eDiscovery vendor to provide OOCL and its eDiscovery vendor with step-by-step instructions for accessing the electronic tagging that SEA used to facilitate OOCL's review, notwithstanding OOCL's own failure to show such reciprocal courtesy.

In short, recognizing that many documents were responsive to multiple requests for production and related to multiple interrogatories, SEA requested its eDiscovery vendor to apply a tagging system that is more accurate than simply noting large Bates ranges. SEA expects OOCL's concerns to be resolved in the coming days.

Regarding OOCL's assertion that SEA has failed to respond to "core interrogatories," SEA disagrees. SEA has responded to OOCL – multiple times, both verbally and in writing – to clearly state its position with regard to the cause of delays and the manner in which such delays are attributable to the faults of OOCL. OOCL also complains that SEA failed to provide a list of the shipments for which SEA is claiming reparations (inaccurately described by OOCL as "damages"). SEA would remind OOCL that: (a) it has had the records of wrongful demurrage and detention charges that it imposed on SEA from the outset; and (b) SEA provided an updated, detailed spreadsheet with that data on November 13, 2025 directly to OOCL's counsel, as well as part of its document production.

## **2. Anticipated Motion to Compel**

SEA completed its production on November 24, 2025. OOCL, by contrast, does not appear to have fully cured the deficiencies SEA identified. Despite multiple good-faith efforts to resolve SEA's specific concerns regarding OOCL's interrogatory objections and incomplete document production, the Parties' positions appear fixed and further meet-and-confer discussions are unlikely to resolve or narrow the disputes.

We do note that SEA has just received an additional tranche of documents from OOCL on December 30, 2025, totaling nearly 5,000 pages. SEA will review those documents before finalizing the scope of its anticipated motion.

Accordingly, after fully reviewing OOCL's most recent production and conferring once more, SEA anticipates filing a Motion to Compel based on its initial review.

### **Respondents, Orient Overseas Container Line Limited and OOCL (Europe) Limited**

#### **1. Discovery:**

OOCL summarizes below the progress of discovery in this matter since the December Joint Status Report.

OOCL's written responses had raised objections based on relevance and burden to many of the discovery requests imposed by SEA, which were the subject of an initial exchange of letters between counsel on November 14 and December 11, and an intervening conference call among counsel. Thereafter, following receipt of SEA's additional letter of December 19, 2025 claiming deficiencies with respect to requests to which OOCL had objected and conference calls between counsel to attempt to resolve these discovery disputes, OOCL has served the supplemental discovery responses and made the supplemental productions on a continuous, ongoing basis, as

described below. Although OOCL maintains its objections and considers SEA's claim of deficiencies to be meritless, it nevertheless has complied with the majority of SEA's demands to avoid the time and expense of motion practice. OOCL has therefore completed the document production phase of the discovery process by January 5, 2025, in compliance with the requirements of the Second Amended Scheduling Order (December 3, 2025). The supplemental discovery provided by OOCL is described below:

- On December 2, 2025, OOCL produced additional materials, while maintaining its objections to SEA's requests for same. This production included 1,829 documents totaling 4,574 pages.
- On December 3, 2025, SEA wrote to OOCL, complaining that its production was not inclusive of native materials, an alleged defect which SEA claims was required so that it could search the produced materials. This complaint, which has been expressed by SEA throughout the proceeding, was addressed by OOCL the same day.
- On December 5, 2025, OOCL continued its supplemental production, while maintaining its objections to SEA's requests for same. This production consisted of 73 documents totaling 556 pages.
- On December 11, 2025, OOCL provided an initial letter to SEA in response to the deficiencies SEA alleged in its November 14 letter, confirming that OOCL would continue to supplement its productions.
- On December 15, 2025, the Parties met and conferred regarding the remaining deficiencies alleged by SEA with respect to OOCL's discovery responses and production materials; and, with respect to a core deficiency in SEA's discovery responses, which is described below.
- On December 19, 2025, SEA sent a twenty-page letter to OOCL confirming its identification of those discovery responses that it considered to be deficient and reiterating its intent to file

a motion to compel regarding same. In that same letter, SEA asserted that documents it had produced could be correlated to OOCL's specific discovery requests based upon codes electronically embedded in the documents it produced. To date, however, OOCL has been unable to identify these electronic codes and has requested a conference with SEA's counsel and/or eDiscovery vendor to explain how the codes can be located and correlated to OOCL's discovery requests.

- On December 22, 2025, OOCL produced additional materials, consisting of an additional 39 documents, totaling 789 pages.
- On December 30, 2025, OOCL made what it believes to be its final supplemental production, again while maintaining its objections to SEA's requests for same, consisting of 1,830 documents totaling 4,575 pages.
- On December 31, 2025, OOCL served additional lengthy and detailed Supplemental Responses to SEA's written discovery requests. Again, OOCL considered the additional information sought by SEA to be generally irrelevant; it was also burdensome for OOCL to generate. Nevertheless, OOCL served these supplemental responses in an effort to avoid the extensive motion practice which enforcement of its objections would have required.

As outlined above, since the last status report OOCL has been focused on addressing SEA's continuing and lengthy additional demands for supplemental productions and discovery responses. As a result, SEA has successfully delayed OOCL's efforts to sift through SEA's massive production, which is appropriately characterized as a "data dump" and was made approximately two months after the expiration of the original deadline for completion of documentary discovery.

SEA's production of over 1 million pages is not organized in any coherent manner, and, as mentioned above, SEA has yet to provide OOCL with an understanding of how the documents

which were produced correspond to OOCL's specific discovery requests. Of particular importance is SEA's failure to respond to two of three core interrogatories (and corresponding document requests), namely: (1) provide a list of the shipments for which SEA is claiming damages: (2) describe the cause of delays giving rise to those damages and identify documents relating to same; and, (3) explain why OOCL is responsible for those damages and identify the documents SEA will rely on to support that assertion. SEA produced (1) the list of the shipments for which it claims damages on November 13, 2025 (Bates No. 24-17\_SEA\_00059845); however, it has refused (both verbally and in writing) to respond to the remaining two interrogatories and related document requests which will enable OOCL to evaluate the core issues in this proceeding, i.e., what caused the delays giving rise to SEA's alleged damages; and what OOCL allegedly did (or failed to do) to cause those damages.

Given SEA's refusal to provide this information, it is regrettably likely that OOCL will be required to file a motion to compel responses. As noted above, SEA claims that the documents it produced in its last two productions contain "issue tags" which relate the produced documents to specific discovery responses. Despite this assertion, neither OOCL's counsel nor eDiscovery team have been unable to locate these "issue tags" and SEA's counsel has not been able to explain where these "issue tags" are located. SEA counsel advised on January 1, 2026 that a conference call with its eDiscovery vendor will be required to explain how they can be identified. In light of SEA's proposed conference call with its eDiscovery vendor, OOCL has delayed filing a motion to compel on the two key issues it has been attempting to discover since the inception of this matter. Hopefully, a conference call with SEA's eDiscovery vendor will enable OOCL to determine if the "issue tags" or codes, which SEA's counsel has long maintained are embedded in the documents

it produced, will enable OOCL to ascertain this critical information. If not, OOCL will be required to file a motion to compel SEA to disclose this key information.

The foregoing issue is particularly problematic in light of the overwhelming size of SEA's document production, made after the initial deadline for production had passed and which includes numerous materials that are not responsive to any request for production made by OOCL. All of the foregoing has forced OOCL to spend time hunting through the materials produced by SEA in hopes of finding responsive material.

In summary, SEA's actions have prejudiced and continue to prejudice OOCL's ability to distill key materials from the massive and largely non-responsive production made by SEA, all while SEA has simultaneously had months to review OOCL's focused productions. Finally, as noted above, OOCL has recently undertaken to produce materials far beyond what should have been required, and over its own objections, in order to avoid the delays that would result from motion practice over these issues.

All of this notwithstanding, as noted above, OOCL continues to undertake efforts to be cooperative in this proceeding and has diligently worked to proceed in spite of the obstacles presented by SEA's continued obstinance, demands, and representations about its own production material.

## **2. SEA's Motion to Dismiss OOCL's Counterclaim and SEC's Motion to Dismiss OOCL's Third Party Complaint.**

On November 26, 2025 the Presiding Officer ruled on SEA's Motion to Dismiss the Counterclaim and SEC's Motion to Dismiss the Amended Third Party Complaint. No exceptions were filed, and the Commission served a notice not to review the Order *sua sponte* on December 29, 2025.

### **3. Mediation**

As noted in the December Joint Status Report, OOCL has advised SEA that it would consider further settlement negotiations and, potentially mediation, if it believes the latter process would be productive, provided that SEA completes its discovery obligations and produces not just a list of the shipments for which it is claiming, but an description of the delays which gave rise to the assessment of demurrage or detention and what it claims OOCL did to cause or contribute to those charges. Discussions with regards to possible mediation are ongoing.

Dated: January 5, 2026

Respectfully Submitted,

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## **CERTIFICATE OF SERVICE**

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